CHAPTER 67 National Investigation Agency

Establishment

The National Investigation Agency (NIA) was constituted in 2009 under the provisions of the National Investigation Agency Act, 2008 (NIA Act). It is the central counter-terrorism law enforcement agency in the country.

The NIA was established in the backdrop of the 2008 Mumbai terror attacks, popularly known as the 26/11 incident. This national horror led to the realisation of the need for a separate federal agency to deal with terror-related crimes in the country.

The headquarters of the NIA is in New Delhi. The branch offices of the NIA are located in different states of India. In addition, the NIA has a separate specialised cell known as TFFC Cell dealing with the subjects of fake currency notes and terror funding.

The NIA is headed by a Director-General. He/she is appointed by the central government. His/her powers are similar to the powers exercisable by a Director-General of Police in respect of the police force in a state.

The NIA works under the administrative control of the Ministry of Home Affairs, Government of India. The state government extends all assistance and co-operation to the NIA for investigation of the offences specified under the NIA Act.

Rationale

While introducing the NIA Bill, 2008, in the Parliament, the Government of India gave the following reasons for creating the NIA:



1. Over the past several years, India has been the victim of large-scale terrorism sponsored from across the borders. There have been innumerable incidents of terrorist attacks, not only in the militancy and insurgency affected areas and areas affected by left-wing extremism, but also in the form of terrorist attacks and bomb blasts, etc., in various parts of the hinterland and major cities, etc.

2. A large number of such incidents are found to have complex inter-state and international linkages, and possible connection with other activities like the smuggling of arms and drugs, pushing in and circulation of fake Indian currency, infiltration from across the borders, etc.

3. Keeping all these in view, it was felt that there was a need for setting up of an agency at the central level for the investigation of offences related to terrorism and certain other Acts, which have national ramifications.